

TKDL Access Framework and PCT National Phase Entry in India

TKDL / WIPO · Guideline · 2022

SECTION 1 — WHAT IS TKDL

The Traditional Knowledge Digital Library (TKDL) is a documentation system that translates and codifies India's traditional medicinal knowledge (Ayurveda, Unani, Siddha, and Yoga) already in the public domain, expressed in ancient texts and regional languages, into a searchable format in five international languages, classified for use by patent examiners worldwide. Its principal purpose is defensive: to prevent grant of patents over knowledge that is not novel because it is already part of the traditional knowledge commons.

SECTION 2 — ACCESS MODEL

TKDL is not a publicly browsable database. Access is provided to patent offices with which India (via CSIR) has signed a TKDL Access Agreement, subject to confidentiality provisions preventing onward disclosure of the underlying data outside the examination process. This protects the traditional knowledge from being appropriated for illegitimate patent claims while still enabling effective prior-art search by examiners.

SECTION 3 — IMPLICATIONS FOR APPLICANTS

An applicant filing a patent that touches on AYUSH-linked ingredients should expect that:

- The examiner may cite TKDL prior art without the applicant having direct access to the underlying TKDL entry.
- The most effective defence against a TKDL-based novelty/inventive-step objection is a claim scope that goes beyond the documented traditional use (see Section 3(p)/3(d) discussion in the Patents guidelines).

SECTION 4 — PCT NATIONAL PHASE ENTRY IN INDIA — KEY TIMELINES

- National phase entry in India under the Patent Cooperation Treaty must ordinarily occur within 31 months from the earliest priority date.
- Required filings include Form 1 (application), a verified English translation of the PCT application if not already in English, Form 3 (statement regarding foreign filings), and payment of the prescribed national phase fee (with startup/MSME concessions available).
- A request for examination (Form 18/18A for expedited examination) must be filed separately; India does not automatically examine on national phase entry.

SECTION 5 — EXPEDITED EXAMINATION FOR STARTUPS

Form 18A permits eligible applicants — including DPIIT-recognised startups, small entities, and PCT applicants who elected India as the International Searching Authority — to request expedited examination, materially reducing the time to first examination report compared to ordinary queue processing.

DISCLAIMER: General summary for informational/demo purposes; verify current procedure against the PCT Applicant's Guide (India national phase chapter) and current Patents Act/Rules.